

Court No. - 19

Case :- WRIT - C No. - 10475 of 2015

Petitioner :- Madhyanchal Vidhyut Vitran Nigam Ltd.

Respondent :- Permanent Lok Adalat And Another

Counsel for Petitioner :- Ms. Usha Kiran

Hon'ble Shri Narayan Shukla,J.

Heard Ms.Usha Kiran, learned counsel for the petitioner.

The petitioner has challenged the order dated 31 October 2014, passed by the Permanent Lok Adalat in P.L.A.Case No.177 of 2014.

The Lok Adalat has issued direction to the petitioner to provide the electricity connection to the respondent No.3 from an independent feeder, whereas learned counsel for the petitioner submits that under clause 3.4(a) and (b) of the U.P.Electricity Supply Code, 2005 the electricity connection can be released through an independent feeder where the plant is established with the load of 1000 KVA or more than that. She further submits that the respondent No.3's electricity load is below 500 KVA, therefore, there is no need to get electricity connection from an independent feeder. The petitioner is ready to supply the electricity connection through the normal rural electricity line.

Considering the aforesaid submission, I hereby stay the operation of order impugned dated 31 October 2014, passed by the Permanent Lok Adalat in P.L.A. Case No.177 of 2014 till further orders of this Court. However, it is provided that if the respondent No.2 is ready to get the electricity connection through the rural electricity line, he can make a request and the department shall be free to grant the electricity connection accordingly.

Issue notice to respondent No.2.

List alongwith service report on the date fixed in the summons.

Order Date :- 23.2.2015

Banswar

(Shri Narayan Shukla,J.)

Court No. - 58

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Respondent :- Permanent Lok Adalat And Another

Counsel for Petitioner :- Ms. Usha Kiran

Counsel for Respondent :- S.C., Vivek Saran

Hon'ble Mahesh Chandra Tripathi, J.

Sri Vivek Saran, learned counsel for the contesting respondent states that the counter affidavit alongwith stay vacation application has been filed way back in the year 2015 but till today no rejoinder affidavit has been filed inspite of sufficient time.

As a last opportunity, three weeks and no more time is accorded to Ms. Usha Kiran, learned counsel for the petitioner to file rejoinder affidavit.

List immediately thereafter.

Order Date :- 13.2.2017

Jaswant